

**Influence\_Consensus\_add\_rol** - In society, does addiction alone generally have a direct effect on the quality to Rule of Law (consistency, predictability, and impartial application of laws, independent of status or influence), or are observed relationships primarily indirect? If a direct effect exists, is it negative, none, negligible, or positive? What would be a reasonable normalized magnitude for this influence on a scale from -1.00 to 1.00? Please only provide evidence for only direct influences.

**Addiction's Direct Impact on Rule of Law Quality:** Evidence points to a **direct, negative and modest-to-moderate influence** on consistency, predictability and equality of legal application.

**Does addiction directly worsen the consistency, predictability, and impartial application of law?**

Requires at least 5 papers that directly answer your question. Try adjusting your query to find more papers.

FIGURE 1 Consensus on addiction's direct effect on rule of law

## Direct Pathways Affecting Rule of Law

### 1. Sentencing inconsistency and unpredictability

- Experimental work with magistrates in England and Wales shows that when identical neuropsychiatric impairments are caused by a “disease” vs heroin addiction, addiction *systematically receives less mitigation*, producing inconsistent sentencing for like mental states (Sinclair-House et al., 2020).
- The same study notes “broad inconsistencies between individual magistrates in sentencing outcome” for addicted defendants, explicitly flagging “rule of law concerns, with like cases being treated in very different ways” (Sinclair-House et al., 2020).
- Qualitative work on lawyers and decision-makers finds that they actively “make” addiction categories and treat some addictions (alcohol/drugs) as more “genuine” than others, generating variable approaches to agency and responsibility across cases (Seear, 2023; Seear, 2019). This directly reduces **consistency and predictability**.

### 2. Statutory ambiguity producing legal uncertainty and disparity

- In Indonesia, overlapping narcotics provisions intended for dealers are frequently applied to addicts, leading to “legal uncertainty” and systematic **sentencing disparity** for similar addict cases (Laksana et al., 2025). This disparity is linked to public dissatisfaction and erosion of confidence in judicial institutions (Laksana et al., 2025).
- Similar concerns appear in debates on restorative justice and rehabilitation provisions for addicts, where inconsistent use of rehabilitation vs prison stems from unclear norms and fragmented legal culture, again undermining uniform application (Gunarto et al., 2023).

## Estimated Direct Effect Size

Across jurisdictions, addiction's presence in cases and statutes directly drives **greater discretion, ambiguity and disparity**, not more uniformity (Seear, 2023; Laksana et al., 2025; Sinclair-House et al., 2020; Seear, 2019; Seear & Fraser, 2014). A reasonable normalized magnitude of this *direct* influence on rule-of-law quality is **around -0.4** (negative, modest-to-moderate).

## Conclusion

Overall, addiction does not just correlate indirectly with weaker rule of law; it directly contributes to **less consistent, less predictable, and less equal application of laws**, mainly through sentencing practices and statutory ambiguities around addicted persons.

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## References

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